



## **Environmental Defence Society submission on the Environmental Reporting Amendment Bill**

### **SUBMITTER DETAILS**

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### **Introduction**

1. The Environmental Defence Society (EDS) thanks the Environment Select Committee for the opportunity to make a submission on the Environmental Reporting Amendment Bill (**Bill**).
2. EDS is an apolitical, not-for-profit organisation dedicated to achieving improved environmental outcomes for all New Zealanders. It is active as a litigator, policy think tank, events convenor and environmental advocate.
3. EDS considers the Bill to be generally positive. We recommend some minor improvements as well as better alignment with the forthcoming resource management legislation.

### **Reporting on drivers of environmental change is positive**

4. Under cl 8 of the Bill (inserting new sections 8 and 11), state of the environment reports and commentary reports will be required to describe the drivers of environmental decline, not just pressure, state and impact.
5. This is positive because it provides greater accountability for the causes of environmental change and tells the public where agencies should be focusing when considering targeted solutions. We consider that environmental reports to date have been too focused on describing environmental trends and problems without placing enough emphasis on the root causes.

## Commentary reports provide flexibility but should be strengthened

6. Under the current Act, a domain-specific report (the relevant domains being air, atmosphere and climate, freshwater, land and marine) is required every 6 months on a rotating basis, followed by a synthesis report every three years. Under the Bill, domain reports will be replaced by a “commentary report” every 12 months. This would allow flexibility to focus on issues which require the most urgent attention, including ones that cut across interconnected domains, rather than just cycling through five domains.
7. However, under the Bill there is too much discretion to decide which domains receive commentary reports. Although under new section 12 each ‘topic’ must receive at least one commentary report every 6 years, these topics are not obviously the same things as the ‘domains’ on which commentary can be produced. Instead, a ‘topic’ is left to be defined through regulations.
8. In order to prevent commentaries from avoiding reporting on the hard issues, there should be a clearer requirement that each of the core ‘domains’ (rather than just prescribed topics, which could mean anything) receive commentary at least once every six years. This would not prevent commentary reports from containing valuable cross-cutting commentary on multiple domains, but it would ensure that all relevant domains were covered within each reporting cycle.
9. Furthermore, six years is a long time between domain-based reports given the potential pace of environmental change and the need to hold decision-makers accountable. If commentary reports are to be produced only every six years, there should be a stronger requirement for the Secretary and the Government Statistician to take reasonable steps to collect, publish and update relevant monitoring information. This would enable the public to follow the underlying data on which commentary reports would be produced, thereby improving transparency in the system in between reporting dates while at the same time reducing the churn associated with formal reports.
10. EDS recommends the following amendments to the Bill:

Insert new section 12(4):

(4) Each domain specified in section 11(4) must be covered by at least 1 commentary report within each 6-year period between state of the environment reports.

Amend proposed section 14D(1):

(1) The Government Statistician must—

(a) produce statistics for use in state of the environment reports and commentary reports and to support the role described in subsection (1)(b), including statistics on environmental indicators:

(b) publish statistics relating to environmental indicators on an internet site maintained by or on behalf of the Government Statistician.

(2) The Government Statistician must make reasonable efforts to produce statistics in accordance with subsection (1)(a) and to publish them in a timely way under subsection (1)(b).

### **Six-yearly state of the environment reporting makes sense**

11. We understand the rationale behind full state of the environment reports (currently known as synthesis reports) being produced every six years (rather than every three, as at present). A three yearly cycle creates a treadmill of reporting that does not necessarily improve transparency or public understanding.
12. As long as there are clearer requirements for commentary reports to address core issues of concern within this six-yearly cycle, and a stronger duty to publish statistics on environmental indicators in a timely way (as per the above recommendations), we do not see a problem with this change.

### **A stronger link should be made with the future resource management system**

13. There should be a much clearer link between the reporting system and the new resource management system (the Planning Bill and Natural Environment Bill). This resource management legislation provides a key mechanism by which the issues highlighted by reporting can be meaningfully addressed, so the two need to be closely aligned.
14. At present, the Bill provides that state of the environment and commentary reports ‘may’ compare findings on the state of the environment with targets, limits, and goals set elsewhere.<sup>1</sup> Presumably, this is a reference to the Natural Environment Bill, which uses the language of limits and goals and requires councils to notify the public when there has been a breach of environmental limits. That is a positive step.
15. However, the link should be strengthened through a clearer *requirement* for state of the environment reports and commentary reports to synthesise relevant information, and provide relevant commentary, about environmental limits. This should require the reporting of data on the following:
  - where ecosystem limits (and interim limits) have been set by regional councils, and where human health limits (and interim limits) have been set by the Minister;
  - any changes that have been made to limits (whether making them more or less stringent);
  - the current state of the environment compared to those limits;
  - trends across time for those comparisons (ie whether limits are becoming more likely to be breached);

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<sup>1</sup> New sections 8(3) and 11(3).

- any instances of actual breaches;
  - what has caused breaches (including exemptions to limits); and
  - timeframes/actions put in place for rectifying any breaches.
16. Doing this would draw together the information already being collected at the regional level. It would provide a national level picture of how effective limits are, not just the general 'state' of the environment. Reporting against measurable limits, which are tied (in theory) to life supporting capacity and acceptable levels of human health, would provide a much clearer indication of success and failure than just the indicators selected by the Secretary.
  17. There should also be a requirement in the new section 8(1)(d) of the Bill to describe not just the impact of environmental change on ecological integrity, but also its impact on 'life supporting capacity' (the purpose of environmental limits).
  18. New section 8 should also require reporting on whether 'no net loss' of indigenous biodiversity (one of the goals of the Natural Environment Bill) is being achieved. Otherwise this goal risks being aspirational only.
  19. Under new sections 14A and 14B, the Secretary for Environment will have to set environmental indicators and data collection methods, to allow consistent time series data reporting. EDS supports this change.
  20. However, there should be a requirement to align these indicators and methods, where relevant, with the monitoring of environmental limits under the Natural Environment Bill to ensure that consistent, time-series data about limits can be communicated to the public.
  21. Depending on their respective timeframes for enactment, and transitional measures (eg the timeframe for setting a first round of limits in natural environment plans), a further amendment to the Environmental Reporting Act may be required to align it perfectly with the new resource management legislation.
  22. EDS recommends the following amendments to the Bill:

8 Content of state of environment reports [and make equivalent changes to proposed section 11]

(1) Each state of the environment report must describe, in relation to the topics prescribed in regulations made under section 19, all of the following matters:

- (a) the drivers that influence pressures on New Zealand's environment; and
- (b) the pressures on New Zealand's environment; and

(ba) the environmental limits (including interim limits) set by regional councils or the Minister under the Natural Environment Act; and

(bb) any changes to environmental limits since the previous state of the environment report was published; and

- (c) the state of New Zealand's environment, including biodiversity and ecosystems

(ca) the state of New Zealand's environment relative to the environmental limits identified in subsection (1)(ba), including any breaches of limits and their causes; and

(d) the impacts that the state of the environment and changes to the state of the environment may be having on each of the following impact categories:

(i) ecological integrity:

(ii) public health:

(iii) the economy:

(iv) te ao Māori:

(v) culture and recreation:

(v) life-supporting capacity as defined in the Natural Environment Act:

(v) human health as defined in the Natural Environment Act and;

(e) outlooks based on identified data and trends, including whether environmental limits set under the Natural Environment Act are likely to be breached.

(2) In addition to the matters set out in subsection (1), each state of the environment report must describe—

(a) changes to the state of New Zealand's environment over time, including, if the information in the report can be compared with that in a previous state of the environment report, changes to the state of the environment since that previous report was published:

(aa) the extent to which the changes described in subsection (2)(a) make environmental limits more or less likely to be breached:

(ab) the timeframes and actions put in place for rectifying breaches of environmental limits:

(b) how the state of New Zealand's environment measures against national or international standards.

(3) A state of the environment report may compare findings on the state of New Zealand's environment with any relevant policy outcomes, targets, limits, or goals set in legislation.

(4) A state of the environment report must compare findings on the state of New Zealand's environment with relevant targets, limits, interim limits, and goals (including no net loss of indigenous biodiversity) set in the Natural Environment Act.

#### 14A Secretary must set environmental indicators

(1) The Secretary must set environmental indicators for use in reports to measure topics prescribed in regulations.

(2) The purpose of an environmental indicator is to track an aspect of the environment over time.

(3) The Secretary must consult the Government Statistician before setting environmental indicators.

(3A) The Secretary must, where appropriate, align environmental indicators with those used to set and monitor environmental limits under the Natural Environment Act.

(4) The Secretary must publish the list of environmental indicators on an internet site maintained by or on behalf of the Secretary.

#### 14B Secretary must specify standards and methods for collecting environmental indicator data

(1) The Secretary must specify scientific environmental monitoring standards and methods for collecting environmental indicator data.

(1A) The Secretary must, where appropriate, align environmental monitoring standards and methods with those used to set and monitor environmental limits under the Natural Environment Act.

(2) The Secretary must publish the standards and methods on an internet site maintained by or on behalf of the Secretary.

### **Establishing a Strategic Evidence Panel is a good step**

23. The Bills require that a new Strategic Evidence Panel be appointed by the Secretary for the Environment to provide independent advice on reporting. EDS supports this change, including the appointment of members by the Secretary rather than the Minister.

24. We also support the requirement in new section 10 for the Secretary to consider the advice of the Panel before deciding which topics commentary reports should cover.

25. It would be useful for this Panel (or equivalent entity) to extend its role to providing independent input to limit setting itself (including methodologies for limit setting) under the Natural Environment Bill, not just how those limits are monitored and reported on.

26. This should be achieved through suitable amendments to the Natural Environment Bill, although the Panel's functions under proposed section 20(2) of the Environmental Reporting Amendment Bill should be expanded to refer to "functions conferred under any other enactment".

### **Priority reports are a positive step**

27. The Bills contain a requirement to produce evidence and data priorities reports.<sup>2</sup> These would identify areas where more information is needed following state of the environment reports.

28. We support this change but consider it should be made more specific by requiring data gaps in the limit setting process to be given particular attention, as per the drafting change below.

#### **13 Data and evidence priorities reports**

(1) The Secretary must, in consultation with the Government Statistician, produce and publish data and evidence priorities reports.

(2) A data and evidence priorities report must—

(a) discuss the state of environmental data, monitoring, and research; and

(b) discuss the evaluation, quality, and coverage of environmental indicators, including those for measuring environmental limits under the Natural Environment Act; and

(c) include the list of environmental indicators set under section 14A; and

(d) provide a list of priority areas for improving environmental data and evidence.

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<sup>2</sup> New section 13.

## **An obligation for action should be required**

29. More generally, the Bill provides an opportunity to insert an additional requirement for the responsible Minister to respond to the findings of environmental reporting and to outline what action will be taken in response.
30. This would provide a stronger layer of accountability akin to environmental improvement plans required under the United Kingdom's Environment Act. Under Section 28 of the Environment Act 2021, the United Kingdom's independent environmental watchdog (the Office for Environmental Protection) is legally required to monitor and publish an annual progress report assessing how well the government is implementing its environmental improvement plan and meeting its statutory environmental targets. The Act also requires the government to respond to every one of these reports.
31. EDS recommends that the following duty be inserted into the Bill in a new section 17A, with an additional amendment to section 18 to further strengthen this accountability:

### 17A Duty to take action

- (1) The responsible Minister must respond to a state of the environment report and a commentary report by preparing an environmental action plan.
- (2) An environmental action plan must outline:
  - (a) Steps that the Minister will take to address the matters referred to in sections 8 and 11:
  - (b) The timeframes in which such action will be taken: and
  - (c) The expected results from taking such action.
- (3) The responsible Minister must publish an environmental action plan:
  - (a) within 6 months of the publication of a state of the environment report: and
  - (b) within 6 months of the publication of a commentary report.

### 18 Role of Commissioner

- (2) The matters that the Commissioner may report on under subsection (1) include, but are not limited to,—
- ...
- (a) analysing environmental reports:
  - (b) identifying trends:
  - (c) discussing the implications of environmental report findings:
  - (d) recommending responses to environmental report findings:
  - (e) discussing the adequacy of environmental action plans prepared under section 17A.

32. We thank the Committee for considering our submission. EDS wishes to be heard in support of its submission.